

Council Meeting

August 23, 2023

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Contemporaneous meeting notes for use with other resources in preparation of draft minutes
MEMBERS – PERSONS appearing – BRIEF DESCRIPTION – DECISIONS. RSA 91-A:2.

The Claremont City Council held a meeting on Wednesday, August 23, 2023, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Girard at 6:30 p.m.

Members of the Council present:

Ward I Councilor Andrew O’Hearne
Ward II Councilor James Contois
Ward III Councilor Jonathan Stone
Assistant Mayor Debora Matteau
At-Large Councilor Nicholas Koloski
At-Large Councilor William Limoges
At-Large Councilor Spencer Batchelder
At-Large Councilor Matthew Mooshian
Mayor Dale Girard

Also present:

Yoshi Manale, City Manager

AGENDA CHANGES

Quarterly billing will be removed and added to the September 13th agenda.

REPORT OF THE SECRETARY

A motion was made by Councilor Stone and seconded by Assistant Mayor Matteau to accept the minutes of the August 9, 2023, City Council meeting.

Assistant Mayor Matteau stated changes should made to page 257 it appears the motion to table roll call was a head of the motion instead of below. The motion to reconsider should be exact same motion that was voted on in the first place with that correct vote.

Mayor Girard asked that the motion to accept the resolution to be removed as they never voted.

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Roll call

O’Hearne - Yes

Batchelder - Yes

Stone - Yes

Matteau - Yes

Koloski - Yes

Limoges - Yes

Contois - Yes

Mooshian - Yes

Girard - Yes

Motion carried 9-0

MAYOR’S NOTES

Mayor Girard noted the following events taking place:

Back to school festival Saturday August 26th at Barnes Park from 10:00am-12:00pm

Claremont Senior Center is hosting their 11th annual Car Show at 9:00am-2:00pm

Monday –Tuesday blood drive in the honor of Jayden Harlow Claremont senior center from 12:00pm-6:00pm

Second Saturday Celebration taking place September 9th with the theme of food trucks from 3:00pm-7:00pm

Scholarship gold tournament hosted by the Claremont Parks and Recreation. This will be held at the Claremont Country Club September 13th at 10:00am.

ESDM Sunday September 9th at 8:30am.

Saturday September 16th Kiwanis Brewfest.

Thank you councilor Batchelder for weeding the planters on Pleasant Street.

CITY MANAGER’S REPORT

Over the weekend the online version of the assessment database was updated by Vision inadvertently. Do not use the current tax rate. Visit the city website for more information. The

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city is correcting the mistake and apologizes for the confusion.

NH DES received an electronic type 1 permit # DESSW87037. This permit is under review. DES will hold a public meeting, following that public meeting DES will then issue a decision on the application.

CITIZEN'S FORUM

Reminder for non-agenda items limited to 5 minutes per speaker.

Robin Hood ward I, Mrs. Hood read a letter to address handicap accessibility concerns.

Manager Manale explained why the current handicap ramp that was purchased will not work currently due to the angle of the ramp as well as traffic flow to the front door. The City has ordered another ramp that will be installed on the side of the building.

Mayor Girard reminded Mrs. Hood of the 5 minute per speaker rule.

Chief Jim Chamberlain Ward III, thank you to community members, local business and all fire personnel for the support during the Sullivan Street Fire on August 5th.

Councilor Koloski explained the city has 2 transfer chairs to help with handicap accessibility.

OLD BUSINESS

Ordinance 611 LUCT – Second Reading - Public Hearing

Gary Dickerman, ward I chair of Conservation Commission asked that the council please support the resolution being presented.

CITY OF CLAREMONT – IN THE YEAR TWO THOUSAND AND TWENTY THREE

ORDINANCE #611

Conservation Commission Ordinance Amendment

The City of Claremont Ordains:

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Part 1, Chapter 2, Article II, Division 3, Sec. 2-55 of the Claremont City Code is hereby amended as follows:

Section 1.

Sec. 2-55. - Conservation fund.

Sec. 2-55. - Conservation fund.

Any money received by the conservation commission shall be placed in the conservation fund and allowed to accumulate from year to year, and money may be expended by the conservation commission from such fund for purposes consistent with the stated purposes of this division. All receipts and expenditures by the commission shall be conducted in accordance with NH RSA 36-A:5. All Land Use Change Tax receipts by the City of Claremont shall be immediately transferred to the Conservation Fund.

Section 2. Prior Enactments Shall Not Be Superseded

Any adoptions and/or amendments to the City Code by action of the City Council, prior to adoption of this Ordinance, are hereby preserved subject to the current amendments as presented by this Ordinance.

Section 3. Validity

If any article, section, subsection, sentence, clause or phrase of this Ordinance is for any reason held to be unconstitutional or invalid, such decision shall not affect the remaining portions of this Ordinance.

Section 4. Effective Date

This Ordinance shall take effect and be enforced immediately upon passage.

A motion was made by Councilor Contois and seconded by Councilor Koloski to pass Ordinance 611.

Councilor Contois read Ordinance 611 into the record.

Gary Dickerman, Ward I, this ordinance should be number 611 not 607.

Mayor Girard opened a public hearing, no one spoke. Mayor Girard closed the public hearing.

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Councilor Koloski requested making the change in the minutes.

Roll call:

O’Hearne – Yes

Batchelder - Yes

Stone - Yes

Matteau - Yes

Koloski - Yes

Limoges – Yes

Contois -Yes

Mooshian - Yes

Girard - Yes

Motion Carried 9-0

Resolution 2023-35 ARC and Wheelhouse Agreement – Public Hearing

Councilor O’Hearne reminded the Council this item was tabled and needed a motion to bring it off of the table.

A motion was made by Councilor O’Hearne and seconded by Councilor Batchelder to take Resolution 2023-35 ARC and Wheelhouse Agreement off of the table.

Roll call:

O’Hearne – Yes

Batchelder - Yes

Stone - Yes

Matteau - Yes

Koloski - Yes

Limoges – Yes

Contois -Yes

Mooshian - Yes

Girard - Yes

Motion Carried 9-0

Manager Manale explained the updates of the MOU being added to packets along with the estimates for the ADA bathrooms thanks to Blanc and Bailey. The external estimated cost given is 19,032.50. Manager Manale went into detail on the rental agreement.

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RESOLUTION 2023-35

Arrowhead Recreation Area Operating Agreements

BE IT RESOLVED by the Claremont City Council, after a public hearing duly noticed, that:

WHEREAS the City of Claremont, New Hampshire (hereinafter “City”) entered a lease agreement with the Arrowhead Recreation Club (hereinafter “ARC”) dated 4/1/2002 for use of the Arrowhead Recreational Area property by ARC to operate a ski area for the benefit of the citizens of Claremont; and

WHEREAS The City, ARC and The Wheelhouse, LLC (hereinafter “Wheelhouse”) have agreed that ARC and Wheelhouse will jointly occupy and conduct operations at the Arrowhead Recreation Area pursuant to separate operating agreements with the City.

NOW THEREFORE BE IT RESOLVED that the City Manager or his designees are authorized to undertake all actions and execute all documents necessary to finalize the operating agreements between the City, ARC and the Wheelhouse, and to terminate the 4/1/2002 lease.

Dated this 23rd day of August, 2023, the City of Claremont, County of Sullivan, State of New Hampshire.

A motion was made by Councilor Limoges and seconded by Councilor Stone to adopt Resolution 2023-35.

Councilor Limoges read Resolution 2023-35 into the record.

Mayor Girard opened a public hearing

Chuck Allen, ward III, read the following letter

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8-23-23
Chuck Allen W3

The Arrowhead Lodge is designated as a city park, acquired with LWCF funds.

This Arrowhead lodge situation is sad and there is no need for it. There is a high demand in the area for a reasonably priced event venue. Simple solution is to work within current lease with the A.R.C, the city and the public, making Arrowhead a profitable venue for public use. This would be done with minimal cost to the city. By minimal cost, that would be because there would be no need to build a wraparound deck, turning the main floor back restroom into a ticket window and no need for the expense of transforming the basement restroom^s to be ADA compliant. On the point of making the basement restrooms to be ADA compliant, if lodge was an event venue there are already two ADA compliant restrooms on the main floor with handicap and public access through the patio doors.

Most everyone has no problem with mountain biking on Arrowhead, it's the loss of the lodge for public access that is the problem. Also there has to be some control and accommodations to allow for hikers and other activities on Arrowhead, ~~the city~~ ^{Arrowhead} does not revolve around mountain biking.

Too many false or misleading statements by people supporting commercialization of the lodge. Yes, there is very little activity there now, why, because the city unnecessarily shut it down. It was a busy popular, revenue generating venue until the city and bike shop started these lease negotiations. With COVID now manageable people were expressing an interest in volunteering, renting the facility and promoting a variety of inside and outside public activities to help bring a variety of activities back to Arrowhead. Prior to the forced shutdown, basically both days of every weekend was booked for some sort of activity. ^{to some w.c.f. days as well} Since parks started to control bookings at Arrowhead how many non-parks activities have been booked? One, sort of, this weekend's Grilling for Good, outside. The City keeps saying use fees are not allowed with current lease, not true, the lease does not say one way or the other and prior councils endorsed collecting fees and even established an ordinance to allow alcohol service to aid in promoting use of the facility. The LWCF people even said prior activities were allowable uses and to clarify this a few simple changes to the current lease could be done.

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Recently long-time volunteers and board members were not voted back onto the ARC board so now they are just one of 80+ members of the Arrowhead Recreation Club.

The makeup of the current board is mostly the result of a hostile takeover of people associated with the bike shop, as a push was made to fill the membership roles with their supporters. Two board members are owners of the bike shop and another is a cousin and some are supporters or are active mountain bikers. There are a few who are somewhat neutral.

Would venture to say 80%, or more, of citizens don't have an interest in **extreme** mountain biking, there is a larger number who support biking in general, but not on Arrowhead and a vast majority of the public would at times be more likely looking for a venue for some sort of activity, like at Arrowhead.

Four season access does not need a commercial bike shop in the lodge. If there are bike events happening at Arrowhead, the lodge is available for general use, as a satellite retail or maintenance facility for the event weekend, just like any other person or group looking for event space.

Sounds like city management is saying it's the bike shop or nothing. Despite how popular, successful and profitable an event venue would be.

To approve these agreements would be a mistake and bad for Claremont. Be wary of sweet taking PR presentations benefiting a commercial business in a city park.

You can put the bike shop almost anywhere and be successful, but a lodge with public access, supporting multiple activities, in a city park, can only be right where it is now.

Chuck Allen
Ward 3

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Mayor Girard reminded Mr. Allen of the 3-minute speaker rule.

Mayor Girard Closed the public hearing.

Councilor Koloski stated the Council makes the rules to change the public hearing speaking time from 5 minutes to 3 minutes. Councilor Koloski would like the council to vote on the rule.

Councilor O'Hearne explained his understanding is the Council makes the rules for public forum speaking times. The Mayor as the chair can set the 3 minute rule.

Councilor O'Hearne question Manager Manale on if the ARC meeting / public meeting voted on the agreement.

Brian Zutter ward II, VP ARC board, explained the board held a meeting some time ago and agreed on operating agreement. Mr. Zutter stated the board also had a meeting last week to review agreement and adjust from some of the questions from the Council.

Councilor O'Hearne asked for clarification on what the members of the ARC/Wheelhouse board voted on.

Mr. Zutter Explained the board voted on the original agreement from the City.

Mayor Girard questioned if the board meeting that was held posted publicly.

Mr. Zutter stated the board did meet in executive session therefor was not open to the public.

Manager Manale stated the city does have a signed agreement.

Mayor Girard asked for clarification involving when the ADA bathroom construction would have to be done.

Director Nancy Merrill explained Leigh Hayes has looked at the property; a permit will be pulled and have to meet code.

Mayor Girard asked Director Nancy Merrill to confirm if a Unisex bathroom upstairs would still be in compliance with ADA.

Director Nancy Merrill confirmed a Unisex bathroom would comply with ADA.

Councilor Koloski stated City owned property you don't have to follow rules and the City would be allowed a phased approach with a time frame to comply to make adjustments. Councilor

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Koloski added MOU reads operating restrooms would have to be completed within 1 a year time frame.

Manager Manale explained this ADA bathroom project will be a part of next years' budget.

Director Nancy Merrill reminded the Council nothing would prevent ARC/Wheelhouse from looking for a grant or seeking volunteers in the Community.

Councilor Koloski stated his biggest sticking point is making sure there are ADA compliant bathrooms in the building within a year.

Mayor Girard pointed out Exhibit 4 under insurance, #2 reimbursement general liability insurance cost.

Manager Manale explained the General Liability is 12,000 this year.
Primex cannot cover a 3rd party

Councilor O'Hearne would like to have the dates that the agreements were signed.

Manager Manale stated the City Manager's office can make those signature dates available.

Roll call

O'Hearne - No

Batchelder - Yes

Stone - Yes

Matteau - Yes

Koloski - Yes

Limoges – Yes

Contois -No

Mooshian - Yes

Girard - Yes

Motion carried 7-2

NEW BUSINESS

Ordinance 612 Special Assessment – First Reading – Public Hearing

Manager Manale explained ordinance 612.

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CITY OF CLAREMONT – IN THE YEAR TWO THOUSAND AND TWENTY THREE

ORDINANCE #612

Claremont City Code Amendments

The City of Claremont Ordains:

Pursuant to Chapter 1, Section 1-9, the Claremont City Code is hereby amended as follows:

Section 1. Chapter 15, Sections 15-1 through 15-9- Special Assessments.

Revise and update Sections 15-1 through 15-9, as follows:

Sec. 15-1. -

- A. The city council shall give notice and hold public hearings to consider imposing special assessments when it receives a petition signed by the owners of at least two-thirds of the property proposed for special assessment
- B. Upon receipt of a recommendation from the city manager for a special assessment, the city council shall consider and take action as it deems appropriate.

(Ord. No. 165, § 1, 1-12-77)

Sec. 15-2. - Contents of petition and recommendation.

Any petition or recommendation submitted under the provisions of section 15-1 shall contain within the text of the petition or recommendation or by attachments thereto:

- (1) The public improvement proposed, including surveys, plans, engineering drawings, specifications, and such other documentation as shall be necessary to clearly set forth the proposal.
- (2) An estimate of the costs of the proposed improvements, broken down by appropriate categories and line items and substantiated by persons fully qualified to give such estimates.
- (3) A roll showing the names, addresses, and title references of all the owners of the property proposed for special assessment.

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- (4) The portion of the costs proposed to be defrayed by the special assessment.
- (5) The formula proposed for determining the portion of the special assessment to be taxed to specific properties.
- (6) The number of installments proposed for the special assessment.

(Ord. No. 165, § 2, 1-12-77)

Sec. 15-3. - Filing of the petition.

The original copy of the petition for a special assessment shall be filed with the city clerk along with a certificate by one (1) of the petitioners that copies of the petition and all supporting documents have been delivered to the city manager and city solicitor.

(Ord. No. 165, § 3, 1-12-77)

Sec. 15-4. - Action by city solicitor.

Within ten (10) days after receipt of a copy of the petition for special assessments, the city solicitor shall notify the council, through the city manager, and one (1) of the petitioners whether or not, in his opinion, the petition submitted meets the requirements of section 15-2; and, if it does not, what further documentation is needed. In the event further documentation is required by the city solicitor, and it is then filed in accordance with section 15-3, the city solicitor shall then notify the council, through the city manager, and one (1) of the petitioners, that the petition then meets the requirements of section 15-2.

(Ord. No. 165, § 4, 1-12-77)

Sec. 15-5. - Notice of public hearing.

At the next regular meeting of the council, after receipt of notification by the city solicitor, as required by section 15-4, or recommendation from the City Manager, the council shall set a date for a public hearing and cause notice to be given to the public at least fourteen (14) days before the hearing. By certified mail, the city will properly notify all owners of the properties proposed for a special assessment of the public hearing.

(Ord. No. 165, § 5, 1-12-77)

Sec. 15-6. – Public hearing.

At the public hearing, the council shall hear the petitioners, the City Manager or their designee, and all others who offer evidence or comments concerning the proposed public improvement, the costs thereof, the property proposed for the special assessment, the portion of the costs to be defrayed by the special assessment, the formula for determining the special assessment for each property and the number of installments. If deemed necessary by the council, the hearing may be adjourned from time to time.

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(Ord. No. 165, § 6, 1-12-77)

Sec. 15-7. – Council action.

If, after hearing, the council shall determine that the proposed public improvement should be approved and that the whole or any part of the expense thereof should be defrayed by special assessments upon the property especially benefited, it shall so declare by resolution. The resolution shall state:

- (1) The improvements and their specifications.
- (2) The estimated costs thereof.
- (3) The portion of the costs to be paid by special assessments and the portion to be a general obligation of the city.
- (4) The roll of properties on which the special assessments are to be levied.
- (5) The formula to be used by the city assessor to determine the portion of the special assessments to be levied against specific properties.
- (6) The number of installments in which the special assessments may be paid.

(Ord. No. 165, § 7, 1-12-77)

Sec. 15-8. – Duties of city assessor.

When the council has, by resolution, authorized special assessments, the city assessor shall:

- (1) Compute the amount of the special assessment for each property.
- (2) Bill the property owner along with the regular annual real estate tax bills.

(Ord. No. 165, § 8, 1-12-77)

Sec. 15-9. - Appeals.

In the event any property owner believes that the special assessment levied against his property is in error, he shall have the same rights for abatement and appeal as he has for other real estate taxes.

(Ord. No. 165, § 9, 1-12-77)

Section 2. Prior Enactments Shall Not Be Superseded

Any adoptions and/or amendments to Chapter 15, Sections 15-1 through 15-9- Special Assessments of the City Code by action of the City Council, prior to adoption of this Ordinance, are hereby preserved subject to the current amendments as presented by this Ordinance.

Section 3. Validity

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If any article, section, subsection, sentence, clause or phrase of this Ordinance is for any reason held to be unconstitutional or invalid, such decision shall not affect the remaining portions of this Ordinance.

Section 4. Effective Date

This Ordinance shall take effect and be enforced or implemented immediately upon passage.

A motion was made by Assistant Mayor Matteau and seconded by Councilor Stone to pass Ordinance 612 to a second reading on September 13, 2023 Council meeting.

Assistant Mayor Matteau read Ordinance 612 into the explanation into the record.

Councilor Batchelder asked what the recourse the property owners would have.

Manager Manale explained the special assessment steps.

Mayor Girard opened a public hearing, no one spoke. Mayor Girard closed the public hearing.

Mayor Girard clarified this Ordinance would eliminate needing 50% of signatures to bring before Council, otherwise the process will stay the same.

Councilor Stone believes this could be a valuable tool to offset some of the costs we have for infrastructure development that we do need in the city.

Assistant Mayor Matteau explained her familiarity with special assessments thinks this is a fair way to tackle some of the assessment issues.

Roll call

O’Hearne – Yes

Batchelder - No

Stone - Yes

Matteau - Yes

Koloski - Yes

Limoges – Yes

Contois - Yes

Mooshian - Yes

Girard - Yes

Motion carried 8-1

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Resolution 2024-11 EOP – Public Hearing

Fire Chief Chamberlain explained the importance of the EOP.

Introduced June Garneau who assisted with creating the EOP.

June Garneau / Olin Garneau

Resolution 2024-11

Emergency Operations Plan

WHEREAS the National Incident Management System, herein referred to as NIMS, has been identified by the Federal Government as being the requisite emergency management system for all political subdivisions, including municipalities; and

WHEREAS, the City of Claremont has successfully secured a grant with a 50/50 match requirement, with 50% provided by the State and a matching 50% from the city, accomplished through a soft match in that incurred zero monetary expenses, with no impact on the tax rate; and

WHEREAS, in order for the city to qualify for future federal and state grants, assistance and reimbursements for costs expended during and after a declared emergency or disaster and for training and preparation for such disasters or emergencies, it must adopt the updated Emergency Operations Plan (EOP); and

WHEREAS, an updated Emergency Operations Plan that meets FEMA criteria has been completed;

The Claremont City Council hereby approves and adopts the updated Emergency Operations Plan, and further authorizes the City Manager or his designees to execute all documents and undertake all actions as may be required to implement this motion.

A motion was made by Councilor Contois and seconded by Assistant Mayor Matteau to adopt Resolution 2024-11.

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Councilor Contois read Resolution 2024-11 into the record.

Mrs. Garneau explained the creation of the EOP. Mrs. Garneau stated there will be 2 versions 1 redacted 1 not redacted.

Councilor Koloski questions if the equipment is FEMA reimbursement.

Chief Chamberlain states yes, there are parts under the ESF functions where recourses can be listed for FEMA allocations.

Councilor Contois inquired if there is a template that has met Homeland Security plan.

Mrs. Garneau explains how this plan meets the State criteria.

Mayor Girard opened a public hearing, no one spoke. Mayor Girard closed the public hearing.

Councilor Limoges pointed out page 118 showing a line of succession and questioned why Chief Chamberlain is not listed.

Fire Chief Chamberlain explained why this list is correct.

Councilor Limoges stated not all councilors' names are listed on page 165.

Fire Chief Chamberlain explains that can be fixed after adoption of the EOP.

Roll call

O'Hearne – Yes

Batchelder - Yes

Stone - Yes

Matteau -Yes

Koloski - Yes

Limoges – Yes

Contois -Yes

Mooshian -Yes

Girard - Yes

Motion carried 9-0

Clerical Union MOU

MOTION TO APPROVE CLERICAL UNION AGREEMENT

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HR Director Young explained MOU.

I move that the Claremont City Council approve a Collective Bargaining Agreement between the City of Claremont and AFSCME Council 93, Local 1348 (Clerical Union), which calls for the following increases in salary and benefits:

Year	Estimated Increase
FY 2024	\$68,869
FY 2025	<u>\$50,117</u>
Total Cost:	\$118,986

Said sums represent the additional costs attributable to the increase in salaries and benefits over those of the appropriation at current staffing levels. The increase for FY 2024 shall be covered in the 2024 budget.

A motion was made by Assistant Mayor Matteau and seconded by Councilor O’Hearne to approve Clerical Union Agreement.

Mayor Girard confirms the 2024 fiscal year already has an increase appropriated into the budget.

Director Young stated yes it was already appropriated into the budget.

Roll call

O’Hearne – Yes

Batchelder - Yes

Stone - Yes

Matteau - Yes

Koloski - Yes

Limoges – Yes

Contois -Yes

Mooshian - Yes

Girard - Yes

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Motion carried 9-0

COMMITTEE REPORTS

Councilor Stone gave an update on the Policy meeting that took place on August 22nd, items coming to council shortly for changes. The next meeting is scheduled for Tuesday, September 19th.

Assistant Mayor Matteau explains Planning Board met and addressed one driveway appeal that was granted.

Councilor Contois updates discussion monitoring easements at the Transfer Facility, tree policy, more education programs.

Councilor Stone stated the Tree Policy was at a stalemate in differences in committee and city staff, discussion should be coming to council for full discussion.

Councilor Koloski stated the Planning Board also discussed the Mazda dealership using the property by the high bridge for a little over a year.

FUTURE AGENDA ITEMS AND DIRECTIVES

Councilor Koloski inquired if there were any updates regarding the Gas station on Washington Street.

Manager Manale updated that the city did reach out to the gas station and will follow up with the owners.

CONSULTATION WITH LEGAL COUNSEL

NONE

ADJOURNMENT

At 7:53 p.m., a motion was made by Assistant Mayor Matteau and seconded by Councilor O’Hearne to adjourn.

Voice vote:

O’Hearne – Yes

Batchelder - Yes

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Stone - Yes

Matteau - Yes

Koloski - Yes

Limoges – Yes

Contois - Yes

Mooshian - Yes

Girard - Yes

Motion carried 9-0

Respectfully Submitted,

Jamie L. Foster De Rosa
Acting Clerk to the Council